

Ref:14716

1. Item-1

Name: B&Kvibro make Non contact sensor with full length thread

Short Description: - B&K make Non contact sensor

Names of similar categories – B&K make Non-contact sensor with full length thread, non-contact vibration sensor, non-contact sensor

UNSPSC codes / HSN codes :-90319000

Keywords for product:- B&K Vibro make non-contact sensors , B&K sensors

Parameters : As given below

Sr. No.	Specification	Allowed values
1.	Specify Make :-B&K Vibro	YES
2.	Part code:- DS821.DS1001/10/075/012/005/000/0	YES
3.	Bidder is an original Manufacturer or authorized dealer/distributor. Bid specific valid authorization certificate /letter is to be enclosed /attached with the offer.	YES
4.	Material must be packed and delivered in original equipment's manufacturer (OEM) Packing only	YES/NO

2. Item-2

Name: : B&K vibro make Non contact Reverse mount sensor for sensor holder with adjustment spindle, 0.5m integral cable

Short Description: - B&K make Non contact Reverse mount sensor

Names of similar categories – B&K make Non-contact Reverse mount sensor, non-contact sensor

UNSPSC codes / HSN codes: -90319000

Keywords for product: - B&K make Non-Contact Reverse mount sensor, non-contact sensor

Parameters : As given below

Sr. No.	Specification	Allowed values
1.	Specify Make :-B&K Vibro	YES
2.	Part code:- DS821.DS1003/62/039/013/005/000/0	YES
3.	Bidder is an original Manufacturer or authorized dealer/distributor. Bid specific valid authorization certificate /letter is to be enclosed /attached with the offer.	YES
4.	Material must be packed and delivered in original equipment's manufacturer (OEM) Packing only	YES/NO

3. Item-3

Name: B&K make sensor extension cable

Short Description: - sensor extension cable

Names of similar categories – B&K make sensor extension cable , sensor extension cable

UNSPSC codes / HSN codes :-90319000

Keywords for product:- – B&K make sensor extension cable , sensor extension cable

Parameters : As given below

Sr. No.	Specification	Allowed values
1.	Specify Make :-B&K Vibro	YES
2.	Part code:- DS821.EC100/45/0	YES
3.	Bidder is an original Manufacturer or authorized dealer/distributor. Bid specific valid authorization certificate /letter is to be enclosed /attached with the offer.	YES
4.	Material must be packed and delivered in original equipment's manufacturer (OEM) Packing only	YES/NO

4. Item-4

Name: B&k vibro make sensor Driver electronics for 2mm measuring range

Short Description: - B&K make sensor Driver

Names of similar categories – B&k vibro make sensor Driver electronics for 2mm measuring range, B&K make sensor Driver

UNSPSC codes / HSN codes :-90319000

Keywords for product:- B&k vibro make sensor Driver electronics, B&K make sensor Driver, SENSOR DRIVER

Parameters : As given below

Sr. No.	Specification	Allowed values
1.	Specify Make :-B&K Vibro	YES
2.	Part code:- DS821.OD110/0	YES
3.	Bidder is an original Manufacturer or authorized dealer/distributor. Bid specific valid authorization certificate /letter is to be enclosed /attached with the offer.	YES
4.	Material must be packed and delivered in original equipment's manufacturer (OEM) Packing only	YES/NO

5. Item-5

Name: B and K Vibro make Sensor Holder with adjustment spindle uncut, without sensor thread,FKM O-Ring or fluoro silicon o-ring

Short Description: - B and K Vibro make Holder Sensor Holder

Names of similar categories – B and K Vibro make Holder Sensor Holder, Sensor Holder

UNSPSC codes / HSN codes :-90319000

Keywords for product:- B and K Vibro make Holder Sensor Holder, Sensor Holder

Parameters : As given below

Sr. No.	Specification	Allowed values
1.	Specify Make :-B&K Vibro	YES
2.	Part code:- AC-3101/1	YES
3.	Bidder is an original Manufacturer or authorized dealer/distributor. Bid specific valid authorization certificate /letter is to be enclosed /attached with the offer.	YES
4.	Material must be packed and delivered in original equipment's manufacturer (OEM) Packing only	YES/NO

Price Bid Evaluation and Mismatch between “total price quoted by bidder in GeM Financial bid and Total of Price of all item uploaded “Price bid breakup/SOQR”

ANNEXURE-I

- A. In case of two part tenders, the Bidder shall take special care not to mix up any price details required to be submitted against Part-II (Price bid) with Part-I (Technical & Commercial bid except price) and vice versa. Any violation of the above shall lead to summarily rejection of bid as being non-responsive.
- B. Wherever asked for, the bidder shall be required to submit complete break-up of “Total Price” as per prescribed “Price Bid Break-up/SOQR” format in GeM Portal. In such case, the non-submission of the “Price Bid Break-up/SOQR” or submission of irrelevant document or submission of No/Nil value against all items of the “Price Bid Break-up/SOQR” shall lead to rejection of such bids. However, in case No/Nil rate is quoted against some of the item(s), the price of such item(s) shall be deemed to be zero.
- C. Addition/deletion/modification of any item in the prescribed “Price Bid Break-up/SOQR” format is not acceptable unless authorized by Buyer and accordingly, bids with any unauthorized addition/deletion/modification in the prescribed “Price Bid Break-up/SOQR” format shall be summarily rejected.
- D. Calculations for Price Bid Evaluation for Single Packet/ Part Bids, Part-II (price bid) evaluation for Two Packet/ Part Bids and Contract Order Placement:**
1. For Price Bid Evaluation as per price evaluation criteria as well as for award of contract, “Total Price” quoted by Bidder in GeM Portal shall only be considered. The same “Total Price” shall only be considered for other purposes (i.e., negotiation, price matching in case of MSE/MII purchase preference/Bid splitting, Financial score in case of QCBS tenders, Reverse Auction (RA) etc).

However, the “Price Bid Break-up/SOQR” submitted in GeM Portal or “Price Bid Break-up/SOQR” arrived at as per calculations mentioned in below clauses, as the case may be, will only be used as price breakup for the purpose of interim/running bill payments.
 2. The “Total Price” quoted should match with the total of price of all items of the “Price Bid Break-up/SOQR”.
 3. For arriving at the item-wise amount as well as at the total of all items of the “Price Bid Break-up/SOQR”, the quantity multiplied by the quoted rates shall govern and if required, other figures will stand corrected accordingly.
 4. In case of mismatch between “Total Price” quoted by Bidder in GeM Portal and total of price of all items of the “Price Bid Break-up/SOQR”, the “Total Price” quoted by Bidder in

GeM Portal only shall be considered. The prices of all the items of the “Price Bid Break-up/SOQR” mentioned by the Bidder in the submitted document in GeM Portal, will stand adjusted accordingly in proportion to the weighted average of item-wise amount.

5. Bidder get option to submit Revised “Price Bid Break-up/SOQR” during Negotiation or Reverse Auction (RA). While submitting the Revised “Price Bid Break-up/SOQR”, the Bidder should not increase price of any item(s) from the originally submitted (i.e., uploaded at time of Bid submission) “Price Bid Break-up/SOQR”. Incase, during negotiation price is increased for any item(s) by the bidder, the same shall not be accepted and will be dealt as stipulated in point 4 above.
6. In case of price matching scenario during MSE/MII Purchase Preference/ Bid splitting, the originally submitted price of each of the items of the “Price Bid Break-up/SOQR” will stand corrected by a uniform percentage. This uniform percentage shall be equal to the percentage difference between the originally quoted “Total Price” and the “Total Matched Price” expressed with reference to the originally quoted “Total Price”.

1.0 Banning of business dealings by NPCIL/Buyer

NPCIL reserves the right to initiate Banning as per NPCIL's Banning of business dealings as mentioned below and are independent of actions under GeM's IM (Incident Management) Policy.

The words banning, blacklisting, de-registered, debarred, holiday, suspension of business etc., means the same.

The words NPCIL, Corporation, Buyer etc., means the same.

The words Contractor, Bidder, Seller, Seller, Service Provider etc., means the same.

1.1 Grounds for Banning

The business dealing with the Contractor/Bidder/Seller/Service Provider shall be liable for banning, on account of the reasons attributable to them, which shall include, but not limited to the following:

- 1.1.1.** Involvement in cartel formation during bidding.
- 1.1.2.** Baseless allegations by the bidder on NPCIL/Corporation/Buyer evaluation processes or officials.
- 1.1.3.** If any of the owner, proprietor or partner of the Contractor, is convicted by a court of law, during bidding process or currency of the contract, for offences involving corrupt and fraudulent practices including misrepresentation of the facts, moral turpitude in relation to its business dealings with NPCIL.
- 1.1.4.** Malafide / unlawful acts / malpractices or improper conduct on part of Contractor based on the approved findings of the Investigation Agency.
- 1.1.5.** If the Contractor misuses the premises or facilities of the NPCIL forcefully occupies, tampers or damages the Company's properties etc. or fails to vacate the properties/land/complex within reasonable time limit as specified or even after receiving the notices from the department.
- 1.1.6.** Security concerns for the assets of the Corporation and State.
- 1.1.7.** Submission of bids that contain false information or falsified documents or the concealment of such information in the bids in order to influence the outcome of eligibility screening or / at any other stage of the public bidding and execution.
- 1.1.8.** Withdrawal of a bid or refusal to accept an award of contract with the NPCIL without justifiable cause, after being adjudged as the successful bidder.
- 1.1.9.** Supply of Counterfeit items Breach of Code of Integrity.
- 1.1.10.** Bidder shall not act in contravention of the codes which includes
 - 1.1.10.1 Prohibition of**

- a. Making offer, solicitation or acceptance of bribe, reward or gift or any material benefit, either directly or indirectly, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process.
- b. Any omission or misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained or an obligation avoided.
- c. Any conclusion, bid rigging or anticompetitive behavior that may impair the transparency, fairness and the progress of the procurement process.
- d. Improper use of information provided by the procuring entity to the bidder with an intent to gain unfair advantage in the procurement process or for personal gain.
- e. Any financial or business transactions between the bidder and any official of the procuring entity related to tender or execution process of contract; which can affect the decision of the procuring entity directly or indirectly.
- f. Any coercion or any threat to impair or harm, directly or indirectly, any party or its property to influence the procurement process.
- g. Obstruction of any investigation or auditing of a procurement process.
- h. Making false declaration or providing false information for participation in tender process or to secure a contract;

1.1.10.2 Disclosure of conflict of interest

1.1.10.3 Disclosure by the bidder of any previous transgression made in respect of the provisions of above **1.1.10.1** with any entity in any country during the last three years or of being debarred/ banned by any other procuring entity.

1.2 Show Cause Notice

1.4.26 NPCIL will issue Show Cause Notice to the Contractor on noticing/receipt of a complaint of any irregularities and /or misconduct and /or unethical practice as mentioned in clause no. 1.1.

1.4.27 Upon receipt of Show cause notice, the Contractor is required to submit the reply to Show Cause Notice within 30 days of its receipt and no extension shall be given without justifiable reasons. The Contractor shall also be given an opportunity for oral hearing to present the case in person to NPCIL and the date of Oral Hearing will be indicated in the Show Cause Notice. Only the regular employees of Contractor will be permitted to represent the Contractor during the Oral hearing, and no outsider shall be allowed to represent the Contractor on their behalf.

1.3 Period of Banning

The period of banning shall be for a period of not exceeding 2 (two) years and not less than 6 (six) months as considered appropriate by NPCIL.

1.4 Effect of Banning of Business Dealings by NPCIL

In case NPCIL has banned the business dealing with the bidder/contractor, the following shall be the consequences on issuance of the order of banning of business dealings with the bidder/contractor:

- 1.4.1 No Contract of any kind whatsoever shall be placed to such banned firms including its allied firms after the issue of Banning Order by NPCIL. The Contractor including their allied firms shall not be allowed to participate in any tender enquiry till completion of Banning period. If the Contractor has already participated in tender process and the price bids are not opened, his techno-commercial bid will be rejected and price bid will be kept unopened. In cases, where the price bids of Contractor have been opened prior to the order of banning, such bids shall be rejected. However, incase such banned Contractor is Lowest (L1), next lowest firm shall be considered as L1. Bid Security, if any, submitted by such banned Contractors shall be returned to the bidder.
- 1.4.2 Contractors shall not be permitted to participate in any business process in any form or entity i.e., as an Associate/Collaborator/Joint Venture Partner/Consortium Partner of the Main Contractor even if the banning order is passed subsequent to opening of Part-I bids.
- 1.4.3 Contractor shall not be allowed to participate as Sub-Vendor/sub-contractor in the tenders for contracts for works, service, supplies.
- 1.4.4 Even if, the banned Contractor is an approved Sub-vendor under any Contract for such equipment/component/service, the Main Contractor shall not be permitted to place Work order/Purchase order/Service Contract on the banned Contractor as a sub-vendor after the date of banning even though the name of the party has been approved as a sub-vendor prior to the order of banning.
- 1.4.5 The completion certificate issued to the contractor shall make a mention regarding banning during execution of the contract.
- 1.4.6 Banned bidders shall not be permitted to submit their bid. The bid submitted by the banned bidder shall be summarily rejected.
- 1.4.7 Contracts concluded before the issue of the banning order shall, not be affected by the banning order.
- 1.4.8 Banning shall automatically be extended to all Allied firms of the Contractor. In case of Joint venture/ Consortium is banned all partners will also stand debarred for the period specified in the Banning Order. The names of all partners should be clearly specified in the "Banning order".
- 1.4.9 Banning in any manner does not impact any other contractual or other legal rights of NPCIL.
- 1.4.10 Banning under the provisions of Banning of Business Dealings of NPCIL is applicable only for NPCIL.

1.5 Definition of Allied Firm:

Allied Firm means all concerns which come within the sphere of effective influence of the banned firm. In determining this, the following factors shall be taken into consideration:

- a. Whether the management is common;
- b. Majority interest in the management is held by the partners or directors of banned/
- c. suspended firm;
- d. Substantial or majority shares are owned by the banned/ suspended firm and by virtue

- e. of this it has a controlling voice;
- f. Directly or indirectly controls, or is controlled by or is under common control with another bidder;
- g. All successor firms will also be considered allied firms.